

Court No. - 2

Case :- WRIT - C No. - 15771 of 2010

Petitioner :- Smt. Chandrawati

Respondent :- Dakshinanchal Electricity Supply Nigam Ltd. And Others

Petitioner Counsel :- A.K. Mishra

Respondent Counsel :- Rajesh Tripathi

Hon'ble Ashok Bhushan,J.

Hon'ble Yogendra Kumar Sangal,J.

Heard learned counsel for the petitioner and Sri Rajesh Tripathi, appearing for the respondents.

Only prayer pressed by the petitioner in this writ petition is that petitioner be given liberty to represent the matter before the Executing Engineer with regard to bill dated 1.10.2009, Annexure No. 7 to the writ petition.

The petitioner's case is that electricity connection of the petitioner had been temporarily disconnected on 27.3.2006 with charge that he has not deposited the remaining amount of Rs. 7088/-. The petitioner deposited Rs. 4000/- on 31.3.2006 but the same was not restored.

Learned counsel for the petitioner submitted that when his electricity connection has been disconnected by the respondent department on 27.3.2006, there is no occasion to sent bill regularly in favour of the petition.

The grievance of the petitioner is against the bill which has been received on 1.10.2009.

Learned counsel for the respondent submitted that in case the petitioner submits representation before the respondent no. 3 within two weeks from today, same will be considered in accordance with the U.P. Electricity Supply Code, 2005.

In view of the aforesaid, the writ petition is disposed of giving liberty to the petitioner to submit representation before the respondent no. 3 raising all his grievances and the same will be considered and decided expeditiously, preferably within three months from the date of the production of the certified copy of this order.

Order Date :- 30.3.2010

RMV